

In the Supreme Court of Bangladesh
High Court Division
(Civil Revisional Jurisdiction)

Present:

Mr. Justice Md. Aminul Islam

Civil Rule No.860(con) of 2023.

Anwer Sadat and another.

..... petitioners.

Vs.

Lieutenant Colonel (Rtd.) Md. Iqbal Shafi

..... Opposite-Party.

Mr. Md. Golam Noor, Advocate.

..... for the petitioners.

No one appears.

.....for the opposite-party.

Heard and Judgment on: 25th February, 2024.

This Rule was issued calling upon the opposite-party No.1 to show cause as to why the delay of 245 days in filing the revisional application against the order No.26 dated 06.09.2022 passed by the learned Additional District Judge, 4th Court, Chattogram in Money Suit No.01 of 2018, should not be condoned and/or such other or further order or orders passed as to this Court may seem fit and proper.

The case of the petitioner for condonation of delay has been made out in the application for condonation of delay in filing the revisional application against the order No.26 dated 06.09.2022 passed by the learned Additional District Judge, 4th Court, Chattogram in Money Suit No.01 of 2018.

Being aggrieved by and dissatisfied with the said order the petitioners preferred this revisional application which is out of time by 245 days.

Mr. Md. Golam Noor, learned Advocate appearing for the petitioners submits that there is a delay of 245 days for filing this revisional application which occurred due to communicate with the learned Advocate and according to his advice to procure additional documents for filing this revisional application which is unintentional and there is no willful laches or negligence by the petitioner and that time for preferring Civil Revision has already been expired. He submits that delay of 245 days in filing the Civil Revision is unintentional delay for which prayed for condone the delay in filing the Civil Revision for the end of justice. He lastly submits that if the delay is not condoned the petitioner will suffer irreparable loss and injury.

No one appears for the opposite-party to oppose the Rule.

I have gone through the application and other material on record and considered the submission of the learned Advocate for the petitioners.

Although the Limitation Act does not provide for any Specific period of Limitation for invoking discretionary jurisdiction of this Court under section 115 of the Code of Civil Procedure but a long standing practice one has to file it without causing inordinate delay.

It appears that Section 5 of the Limitation Act has empowered to allow an application for a revision beyond the period of limitation if the petitioner can satisfy the Court that he had sufficient cause for not preferring the revision application within the period of limitation.

Considering the facts, circumstance and materials on record, it appears that the petitioners filed an application for obtaining certified copy of the impugned order and accordingly received the same. Thereafter, the tadbirkar of the petitioners conducted their learned Advocate who informed them that time for preferring Civil Revision has already been expired and prepared the revisional application taking the ground for obtaining certified copy can be treated sufficient ground to condone the delay in filing the revisional application. The grounds taken by the petitioners are humanitarians which should not be ignored. The cause of delay seems to have unintentional which was beyond control of the petitioners. The petitioners did not act negligently; rather they were diligent in filing the revisional application.

Ordinarily a litigant does not stand to benefit by lodging an appeal or revision late. Refusing to condone delay can result in a meritorious matter being thrown out at the very threshold and cause of justice being defeated. As against this when delay is condoned the highest that can happen is that a case would be decided on merits after hearing the parties.

In view of the above, I find merit in the Rule to condone the delay of 245 days in filing the revisional application.

In the result, the Rule is made absolute, however, without any order as to cost. The delay of 245 days in filing the Civil Revision is hereby condoned.

The office is directed to do the needful forthwith. The petitioner may take necessary step for hearing the Revisional application in the appropriate Bench.

Md. Abadul Haque/ Bench Officer.